

Deposition of Mira Solis — appearance and responsibilities

Q. Please state your position and the date of this deposition.

A. I am Blue Cedar's human-resources director. I am testifying on September 29, 2025, from Richmond, Virginia. Today I am appearing in my individual capacity about work I performed and events I observed. If the company later designates me to testify for the organization, I understand that will be a separate examination based on additional preparation.

Q. What responsibilities did you have during the events involving Leora Benton?

A. I administered employee-relations intake, maintained the anti-retaliation review file, received agency notices, and controlled the human-resources copy of the reduction-in-force workbook. I preserved versions and links supplied by finance, operations, and supervisors. I did not set the \$612,000 target, and I did not have final authority to select an operations manager.

Q. Who had that authority?

A. Draven Pike made the final manager-selection decision. Sable Finch confirmed the arithmetic, Naomi Voss supplied supervisor information, and I recorded changes and raised compliance issues.

January opposition and employee-relations review

Q. When did human resources first receive Benton's concern about lead assignments?

A. Naomi Voss forwarded Benton's January 17, 2025 email to me that day. The forward expressly said Benton was raising sex discrimination in the assignment of lead credit. I did not understand it as a general complaint about workload. Benton asked us to review whether women did planning or remediation work while men received the recorded lead designation.

Q. What did you do?

A. On January 21 I opened employee-relations matter ER-25-014, requested examples, and reminded Voss that our policy required human-resources review of proposed changes to Benton's score, duties, pay, schedule, or employment for ninety days. Benton supplied a twelve-engagement table on January 24. Benton, Voss, and I met on January 29, and Benton repeated that the pattern appeared sex-based.

Q. Was the concern closed on January 31?

A. No. My January 31 note said the assignment audit remained open and the underlying records remained on hold. We had reached no conclusion about whether discrimination occurred.

Agency notice, routing, and February meeting

Q. Describe Blue Cedar's receipt of the agency notice.

A. The registered human-resources inbox received the notice for charge SYN-EEOC-RIC-2025-0203 at 9:15 a.m. on February 10. I downloaded the notice and charge at 9:32, linked them to ER-25-014/EEOC, expanded the records hold, and acknowledged receipt to the agency at 1:42 p.m.

Q. Did you send the packet to Pike?

A. Yes. At 3:06 p.m. I forwarded it to outside counsel and Pike with the subject “Benton EEOC charge — preserve and response input.” The system recorded delivery to Pike at 3:07. It recorded an open event at 8:07 a.m. on February 11, and Pike replied at 8:19 that he had received it, would preserve operations files, and would discuss staffing inputs the next day.

Q. What occurred the next day?

A. On February 12, Pike, outside counsel, and I attended a meeting titled “EEOC / staffing response.” The nonprivileged agenda covered preservation, assignment-score sources, pending finance planning, and response ownership. Pike asked when Benton made the internal complaint and whether the charge named other managers.

RIF authorization and protected-activity control

Q. When did the reduction-in-force workbook open?

A. February 14, two days after that meeting. Finch supplied the \$612,000 annualized payroll target, and Pike was the accountable operations executive. The covered population contained twenty-three authorized positions, of which twenty-one were filled and two were vacant.

Q. How was Benton treated in the human-resources controls?

A. Her employee-relations status was not a scoring field. I placed a separate review flag on the file because her January opposition and the February agency notice fell within the policy's ninety-day review period. The flag meant proposed changes needed traceable reasons and comparable treatment. It was not supposed to add or subtract points.

Q. Did the financial target require Benton's selection?

A. No. Finance required qualifying savings, but operations had to decide among combinations that maintained coverage. The workbook later contained more than one combination reaching the target. My role was to preserve the baseline, record later values, and call attention to unsupported or inconsistent changes. I did not tell Pike that finance required him to choose Benton.

Workbook sources and version custody

Q. What information was imported into the manager scorecards?

A. Completion came from the audit tracker, continuity dates from engagement plans, credentials from the training register, travel history from approved schedules, and role information from operations records. The February 14 baseline gave Benton 84 points, Wynn 76, Ibarra 73, and Keene 74. Higher totals favored retention, but the number did not itself select a savings combination.

Q. How did you preserve changes?

A. I maintained the read-only baseline and successive versions dated March 4, March 7, March 10, March 14, and March 21. A change entry retained the old value, new value, timestamp, person making the entry, approver, and any cited basis. The log could therefore show whether an adjustment came from a new source metric or from management judgment.

Q. Were Benton's later reductions caused by refreshed source-system data?

A. No. Her completion and credential values stayed at 27 and 14. The changes to continuity, availability, and uniqueness were calibration entries. I preserved the imported values so the differences could be reviewed.

March 4 and March 7 Benton adjustments

Q. What occurred at the March 4 calibration meeting?

A. Pike, Voss, Finch, and I reviewed the four-manager baseline. I reminded the group that protected activity could not be used as a criterion. Pike asked whether Benton's Northline and Oriole transitions required her through June and whether Keene's automation work and Ibarra's travel availability were difficult to replace. No one was selected at that meeting.

Q. What changed on March 7?

A. Voss proposed reducing Benton's continuity score from 22 to 14 because Wynn and Ibarra could receive her two transitions. Voss also proposed reducing Benton's availability from 12 to 6 based on one short-notice assignment Benton declined in December. I asked whether twenty-eight completed travel days supported a reduction of that size.

Q. Who approved the changes?

A. Pike approved both, saying the model should focus on forward coverage rather than historical volume. No new completion, client, or travel record was cited. Benton was not interviewed about the June transitions or the scheduling conflict before those entries were approved.

Retained-manager credits and final calibration

Q. Describe the changes favoring retained managers.

A. On March 10, Wynn's continuity score increased from 20 to 22 for a Lantern transition scheduled to finish May 30. Ibarra's availability increased from 9 to 14 based on a February 27 offer to travel in the coming quarter, although his completed 2024 travel was sixteen days. I noted that Benton's transitions extended later and her completed travel was greater.

Q. What happened on March 14?

A. Benton's role-uniqueness score fell from 9 to 7 because the group concluded her remediation review could be divided among Keene and Voss. Keene's uniqueness rose from 14 to 15 because leadership wanted one owner for the automation library. The file did not include a formal estimate showing the library could not be transferred within ninety days.

Q. What were the final totals?

A. Benton had 68, Wynn 78, Ibarra 78, and Keene 75. Benton received three downward adjustments. Each retained comparator had no downward adjustment and at least one preserved or increased credit. I recorded those facts without deciding what inference should be drawn from them.

Variance audit and March 21 approval

Q. What did your March 18 audit identify?

A. It reconciled the arithmetic and flagged three consistency questions: different treatment of transition end dates, comparison of future travel willingness with completed travel, and an automation exception without a transfer-time estimate. I asked for a written response before final approval because the policy called for consistent treatment of comparable requests.

Q. Did you certify that those consistency questions had been resolved?

A. No. I certified that the formulas reconciled to the headcount ledger. I did not certify that the employees had been treated consistently. Pike initialed the audit “approved—business continuity” and approved the final selection on March 21. That notation was the response retained in the file; it did not add a separate source citation to each variance.

Q. What did the final scenario show?

A. It selected five filled positions, including Benton, and eliminated two vacancies. Sixteen filled positions remained. Projected savings were \$618,400. The April 1 date in the workbook was the modeled payroll-savings date; Benton's employment actually ended on March 24.

Termination and explanations over time

Q. What reason was stated when Benton was terminated?

A. The March 24 letter said Blue Cedar needed annualized payroll savings and had determined that Benton's management responsibilities could be redistributed. It said the decision was not disciplinary and that she remained eligible for rehire. It did not mention completion, availability, a refused trip, or client confidence.

Q. What did the redistribution records show?

A. On March 25, Wynn received Northline, Ibarra received Oriole, Keene received the remediation queue, and Voss took the monthly quality meeting. No new manager replaced Benton, but the client and review functions continued.

Q. Did later descriptions use additional terms?

A. Yes. In the April position-statement preparation, Pike referred to Benton's relative completion and availability profile. In the July 8 custodian interview he also used client confidence. Voss said Benton's performance remained satisfactory, and Pike identified no contemporaneous client complaint. I preserved the dated descriptions so their relationship could be evaluated rather than rewriting the earlier termination letter.

Disclosures, authentication, and corrections

Q. What subjects did the August 15 disclosures identify for Tessa Wynn?

A. Both sides identified her duties, source metrics, calibration score, continuity exception, and retained assignments. Benton's disclosure also stated that she would supplement if she later learned a materially different subject. Blue Cedar's disclosure likewise said listing a witness did not make every later account timely disclosed.

Q. As of this September 29 deposition, did your records identify a different Wynn subject about protected activity?

A. No. I had the opposition file, routing records, workbook, scorecards, calibration minutes, and assignment materials. None recorded Wynn as a witness to a statement connecting Benton's protected activity to the selection. I am not saying such a statement could never be alleged; I am describing the subjects and records known to me on this date.

Q. Are the documents you discussed maintained in the ordinary files you identified?

A. Yes, subject to the distinctions I made about personal knowledge and record custody. My only correction is that the calendar meeting occurred February 12; February 11 was the packet open event and Pike's reply.